

26STCV04444 26STCV04444

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-09

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Case Number: 26STCV04444 Hearing Date: September 9, 2026 Dept: 512

HEARING DATE: Weds.,

September 9, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Mora

v. Cedars-Sinai Medical Center COMPL.

FILED: 02-10-26

CASE

NUMBER: 26STCV04444 FAC

FILED: 06-18-26 NOTICE: OK

PROCEEDINGS: MOTION

TO STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT FOR DAMAGES

MOVING PARTY: Defendant

Cedars-Sinai Medical Center

RESP. PARTY: Plaintiff Elizabeth Mora

MOTION TO STRIKE

(CCP §§ 435; 436)

TENTATIVE RULING:

Defendant

Cedars-Sinai Medical Center's Motion to Strike Portions of Plaintiff's First

Amended Complaint for Damages is DENIED.

Moving

party is ordered to give notice.

SERVICE:

☒ [X]

Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ [X]

Correct Address (CCP §§ 1013, 1013a) OK

☒ [X]

16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on August 26, 2026 ☐ Late ☐ None

REPLY: Filed

on September 1, 2026 ☐

Late ☐ None

ANALYSIS:

I.

Background

On February 10, 2026, Plaintiff

Elizabeth Mora, by and through her guardian ad litem, Robert Mora ("Plaintiff")
filed the instant action against Defendant Cedars-Sinai Medical Center
("Defendant") and Does 1-40.

On June 18, 2026, Plaintiff filed a

First Amended Complaint ("FAC") against Defendant and Does 1-40, alleging
causes of action for Negligence, and Reckless and Willful Neglect in Violation
of the Elder Abuse and Dependent Adult Civil Protection Act.

On July 2, 2026, Robert Mora

substituted in as Plaintiff in this action in place of deceased Plaintiff
Elizabeth Mora ("Plaintiff").

On July 20, 2026, Defendant filed the instant Motion to Strike Portions of Plaintiff's FAC (the "Motion").

On August 26, 2026, Plaintiff filed an Opposition.

On September 1, 2026, Defendant filed a Reply.

II.

Legal Standard

California law authorizes a party's motion to strike matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436.) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc. § 436, subd. (b).)

The Code of

Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter "at any time in its discretion, and upon terms it deems proper." (Code Civ. Proc. § 436.)

Finally, Code of Civil Procedure

section 435.5 requires that "[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civ. Proc. § 435.5, subd. (a), emphasis added.)

Punitive

damages are authorized by Civil Code section 3294 in non-contract cases "where the defendant has been guilty of oppression, fraud, or malice, express or implied" (Civ. Code, § 3294, subd. (a).) Malice means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294,

subd. (c)(1).) Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (Civ. Code, § 3294, subd. (c)(2).) Fraud means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (Civil Code, § 3294, subd. (c)(3).)

III.

Discussion

Defendant moves to strike the FAC's claim for punitive damages. (Motion, pp. 3-7.) Defendant contends that the FAC fails to establish oppression, fraud, or malice, and Plaintiff failed to obtain a court order pursuant to Code of Civil Procedure section 425.13 before including a claim for punitive damages against Defendant, which is a healthcare provider. (Motion, pp. 4-5.)

In Opposition, Plaintiff contends the Motion should be denied on the grounds that the FAC adequately alleges facts to support a punitive damages request, and Code of Civil Procedure section 425.13 does not apply to claims arising under the Elder Abuse and Dependent Adult Civil Protection Act. (Opp., pp. 2-8.)

In Reply, Defendant only addresses and emphasizes the argument that the FAC contains insufficient facts to support a punitive damages request and does not address the argument raised in the Motion regarding Code of Civil Procedure section 425.13. (Reply, pp. 2-3.)

Meet and Confer

As an initial matter, Defendant submits a meet and confer declaration in support of the Motion that states the parties' counsels had two telephone calls regarding the issues raised in the Motion to no avail. (Motion, Gonzalez Decl.)

Thus, the Court finds the meet and confer requirement is satisfied. (Code Civ. Proc. § 435.5, subd. (a).)

Punitive Damages

As to Defendant's contention that

the FAC failed to comply with Code of Civil Procedure section 425.13, the Court finds the FAC involves an Elder Abuse claim, and the California Supreme Court held that Code of Civil Procedure section 425.13 does not apply to an action under the Elder Abuse Act. (See *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.)

Turning to whether the FAC contains

sufficient facts to support the punitive damages claim, the FAC states among other claims "Defendants neglected and abused Elizabeth Mora through neglect and by deprivation by a care custodian of goods or services necessary to avoid physical harm." (FAC, ¶ 16.) Specifically, Defendants "failed to provide medical care for Elizabeth Mora's physical needs, failed to protect her from health and safety hazards, and deprived her of goods and services necessary to avoid physical harm.... When admitted to defendants' facility, Elizabeth Mora had no serious skin conditions or disorders.... Defendants' neglect caused Elizabeth Mora to develop pressure ulcers, in particular an ulcer to the sacral area. This was despite the warning of a plastic surgery consultant that her wounds needed to be treated and monitored very closely as otherwise 'it will worsen given the patient's overall condition.' "

(FAC, ¶ 16.) Defendants "failed to take steps necessary to prevent the development of pressure ulcers," including turning and repositioning Elizabeth Mora, regularizing mobilizing Elizabeth Mora, providing continence care, maintaining adequate skin moisture, obtaining regular skin assessments, and providing regular wound checks. (FAC, ¶ 16.)

Further, Defendants "routinely understaffed

and undertrained their facility... technicians and other classes of care providers." (FAC, ¶ 18.) The FAC states that Defendants knew of this insufficient training and staffing and ratified/authorized the wrongful conduct of employees. (FAC, ¶¶ 19-21.) "The conduct of Defendants, and each of them, described in this complaint imposed a new injury posing additional serious risks to Elizabeth Mora's fragile health and well-being. The conduct of the Defendants, and each of them, acting directly or through their agents, was intentional and/or oppressive, and/or reckless, and evinced a conscious disregard for Elizabeth Mora's life, health, and safety. Plaintiff is entitled to punitive damages." (FAC, ¶ 24.)

As to corporate entity, Complaint pleads

ratification to managing agents through the “plans of correction ... could only be made by officers, directors and managing agents” theory and failure to discipline any staff. (FAC, ¶¶ 20-22.)

The Court finds the FAC contains sufficient facts to allege malice and/or oppression to support the claim for punitive damages in the FAC because there are facts detailing how Defendants are alleged to have failed to follow Elizabeth Mora's care plan for maintaining her health and thereby caused Elizabeth Mora to develop serious skin conditions or disorders, including pressure ulcers. (FAC, ¶¶ 16-24; Civ. Code, § 3294, subds. (a), (c); see *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 84.)

For all these reasons, the Motion is DENIED.

IV.

Conclusion & Order

For the foregoing reasons, Defendant Cedars-Sinai Medical Center's Motion to Strike Portions of Plaintiff's First Amended Complaint for Damages is DENIED.

Moving party is ordered to give notice.